

Chandra Kanti Rai v. State of U.P.

Allahabad High Court · Division Bench · 18 September 2012 · Writ - C No. 46523 of 2012 · **Recovery citation set aside; fresh recovery after assessment left open.**

HEADNOTE

Writ seeking to quash a 10 July 2012 recovery citation for Rs. 1,09,811 electricity dues. Petitioner alleged the citation issued without a final assessment under the U.P. Electricity Supply Code, 2005. Respondents produced a 7 September 2012 Executive Engineer letter and submitted that, under a 30 June 2012 U.P. Power Corporation circular, the recovery had been recalled for reconsideration. Citation set aside; respondents free to take fresh recovery steps after assessment in accordance with law.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 10 July 2012 for Rs. 1,09,811 as electricity dues, alleging it was issued without a final assessment under the U.P. Electricity Supply Code, 2005. On 13 September 2012 the Division Bench granted the licensee time to obtain instructions. When the matter was heard on 18 September 2012, counsel for the respondents produced a 7 September 2012 letter of the Executive Engineer and submitted that, pursuant to a 30 June 2012 U.P. Power Corporation circular, the recovery had been recalled for reconsideration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

recovery citation without final assessment

HOLDING

A recovery citation for electricity dues is set aside where the licensee has itself recalled the recovery for reconsideration; the licensee remains free to take fresh recovery steps after making assessment in accordance with law. ¶ 1

PRINCIPLE TAGS

law-as-of-final-assessment-date Writ seeking to quash a 10 July 2012 recovery citation for Rs. 1,09,811 electricity dues. Petitioner alleged the citation issued without a final assessment under the U.P. Electricity Supply Code, 2005. Respondents produced a 7 September 2012 Executive Engineer letter and submitted that, under a 30 June 2012 U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION WAS ISSUED WITHOUT A FINAL ASSESSMENT UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

The citation was set aside on the licensee's own recall, not on an independent finding that assessment was absent. ¶ 1